

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403978	SCOTT vs LOCALS PUBLIC HOUSE, INC.	MOTION TO COMPEL

Tentative Ruling:

Defendant's Motion to Compel is granted. Plaintiff Jeffrey Scott is ordered to appear for and complete the continued (Volume II) session of his deposition within 20 days of this order.

Sanctions is denied.

Under CCP § 2025.450(b)(2), a motion to compel deposition must be “accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents . . . described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (CCP § 2025.450(b)(2).) A declaration under section 2016.040 requires the moving party to “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP § 2016.040(a).)

On June 29, 2026, Defendant's counsel sent Plaintiff's counsel a meet-and-confer letter regarding completion of the deposition and enclosed a deposition notice setting the continued session. (Zoreikat Decl. ¶ 10, Ex. C.) The parties then exchanged further meet-and-confer correspondence on June 29 and 30, 2026, but Plaintiff's counsel refused to produce Plaintiff for completion of the deposition, asserting that the deposition was “completed.” (*Id.* at ¶ 11, Ex. D.) On June 30, 2026, Defendant filed the instant motion to compel Plaintiff's deposition. Although the parties engaged efforts to resolve the dispute, they did not meet and confer in person, by telephone, or by videoconference as expressly required by section 2016.040(a).

LEGAL STANDARD

A party may move to compel a deponent's attendance, testimony, and production of documents where, after service of a deposition notice, “a party to the action . . . , without having served a valid objection . . . , fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (CCP § 2025.450(a).) The motion must “set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (CCP § 2025.450(b)(1).)

“[A] deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination.” (CCP § 2025.290(a).)

“The deposition officer may not suspend the taking of testimony without the stipulation of all parties present unless any party attending the deposition, including the deponent, demands that the deposition officer suspend taking the testimony to enable that party or deponent to move for a protective order under Section 2025.420 on the ground that the examination is being conducted in bad faith or in a manner that unreasonably annoys, embarrasses, or oppresses that deponent or party.” (CCP § 2025.470.)

“Once any party has taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.” (CCP § 2025.610(a).) “Notwithstanding subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken.” (CCP § 2025.610(b).)

MERITS

Defendant moves to compel Plaintiff to appear for a continued (Volume II) deposition. The motion presents three issues: (1) whether the June 25, 2026 deposition was “completed” such that any further examination would constitute a prohibited “subsequent” deposition under CCP § 2025.610; (2) whether Defendant violated section 2025.470 by relieving the reporter without stipulation; and (3) whether section 2025.290’s seven-hour cap entitles Defendant to complete its examination. The Court addresses each in turn.

“Completion” of the June 25, 2026 Deposition

The threshold question is whether Plaintiff’s deposition was concluded on June 25, 2026, such that any further examination would constitute a “subsequent” deposition requiring leave of court under section 2025.610, or whether the June 25 session was merely interrupted and remains open for completion. The record reflects that the parties went on the record at approximately 10:08 a.m. and off the record at approximately 6:03 p.m., with the reporter departing for a previously scheduled commitment before Defendant finished its examination. (Zoreikat Decl. ¶¶ 3–6, Ex. B.) Defendant’s counsel represents that she did not terminate the deposition but rather relieved the reporter and reserved the right to continue, with approximately one hour of examination remaining. (*Id.* at ¶ 7, Ex. B.) Plaintiff’s counsel disputes this characterization and asserts that no consent was given to a continued session.

Court finds that the deposition was not “completed” in the ordinary sense. The record shows that Defendant’s examination-in-chief had not concluded and that Defendant’s counsel expressly preserved the right to continue the examination. (*Id.*) A deposition that ends before the examining party has completed its examination, for reasons attributable to a scheduling conflict of the deposition officer rather than the party or deponent, is more properly characterized as an interrupted deposition than a completed one. Section 2025.610’s bar on “subsequent” depositions is therefore not squarely implicated. Even if it were, section 2025.610(b) permits the Court to grant leave for good

cause, which is present here where Defendant's examination was cut short through no fault of its own.

Violation of CCP § 2025.470

Plaintiff contends that Defendant violated section 2025.470 by "suspending" the deposition when the reporter departed without stipulation. Section 2025.470 provides that "[t]he deposition officer may not suspend the taking of testimony without the stipulation of all parties present" except where a party demands suspension to move for a protective order under section 2025.420. (CCP § 2025.470.) By its terms, section 2025.470 is directed at the conduct of the "deposition officer," in this case, the certified shorthand reporter, not to a party's decision to relieve a reporter who has a conflicting commitment, and it contemplates suspension for the purpose of a protective order motion, not the reporter's departure to attend a previously scheduled obligation. Nothing in the record indicates that the reporter suspended testimony over any party's objection. Rather, the reporter advised the parties that she needed to leave, and testimony ceased when she departed. Section 2025.470 does not, on its face, address that circumstance. Accordingly, section 2025.470 does not bar completion of the deposition.

The seven hour cap under CCP § 2025.290

CCP § 2025.290(a) limits deposition examination by all counsel (other than the witness's counsel of record) to "seven hours of total testimony," but expressly directs the Court to "allow additional time . . . if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (CCP § 2025.290(a).) The statute measures actual testimony, not elapsed calendar time, and it contemplates additional time where circumstances beyond the examining party's control impede the examination. Here, the reporter's mid-examination departure is precisely the kind of "other circumstance" that impedes examination within the meaning of section 2025.290(a). Defendant is therefore entitled to complete its examination within the statute's seven-hour cap of actual testimony, and the Court may allow additional time as needed.

As to Plaintiff's related contention that Defendant waived the remaining examination time by declining to secure a backup reporter, Plaintiff has not identified, and the Court is not aware of, any provision of the Discovery Act that requires the noticing party to procure a substitute certified shorthand reporter mid-deposition.

Document-related issues

Plaintiff contends that further examination regarding the notebook of job proposals, tax returns, and bank statements is moot because Plaintiff is withdrawing all wage loss and lost earning capacity claims. According to Defendant, however, this position has been communicated informally through counsel and has not been memorialized by a binding stipulation, amended discovery responses, or a dismissal of the relevant damages allegations. (See Def.'s Reply 5:10–15.) Until Plaintiff's withdrawal is formalized, the document requests remain live, and Defendant is entitled to examine Plaintiff on the responsive documents identified during the June 25 session. Moreover, Defendant

represents that other areas of examination remain independent of the wage loss documents.

SANCTIONS

If a motion to compel deposition is granted, the Court “shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).)

Here, the Court finds sanctions unwarranted. As discussed above, Defendant’s meet-and-confer efforts consisted exclusively of written correspondence and did not satisfy the requirements of section 2016.040(a). In addition, the parties’ dispute over whether the June 25 session was “completed,” and whether relieving the reporter without securing a backup constituted a “suspension,” though ultimately unpersuasive, is not frivolous. Thus, Plaintiff’s opposition to the motion appears to have been substantially justified within the meaning of section 2025.450(g)(1).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404809	OGDEN vs FCA US, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR RYAN J OGDEN

Tentative Ruling: Appearances required.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	JOINDER TO MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Shi’s Motion for joinder is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Uber’s Motion to Compel Arbitration is denied.

The court should declines to rule on all evidentiary objections as immaterial to the court’s determination on this motion.